

Court No. - 39

Case :- WRIT - C No. - 13419 of 2021

Petitioner :- Dharvendra Kumar

Respondent :- Dakshinanchal Vidyut Vitran Khand And 2 Others

Counsel for Petitioner :- Smt. Krishna Singh

Counsel for Respondent :- Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Ms. Krishna Singh learned counsel has put in appearance on behalf of the petitioner.

Sri Alok Mishra learned counsel has received notice on behalf of the respondent. He is not connected to the web-link.

Let this matter be posted as fresh on 07.07.2021.

Order Date :- 29.6.2021

Himanshu

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Counsel for Petitioner :- Smt. Krishna Singh

Counsel for Respondent :- Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Heard learned counsel for the petitioner and Sri Alok Mishra learned counsel for the respondents.

The challenge to the final assessment order dated 16.01.2021 is on the ground that due opportunity of hearing has not been provided to the petitioner. It is a matter of theft of electricity. The order impugned records that the reply submitted by the petitioner was considered by Executive Engineer/ Prescribed Authority. As no plausible explanation has been given by the petitioner, the provisional assessment has been made final.

Considering that the petitioner has an alternative remedy of filing an appeal under Section 127 of the Electricity Act, 2003 read with clause 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005 we do not find any ground to entertain the writ petition.

The writ petition is **dismissed** in view of availability of statutory alternative remedy.

Order Date :- 16.7.2021

Radhika